

ORIGINAL

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF NEW YORK

ANTHONY INMAN, An inmate in the care
and custody of the N.Y.C. Department
of Corrections,

Plaintiff,

versus

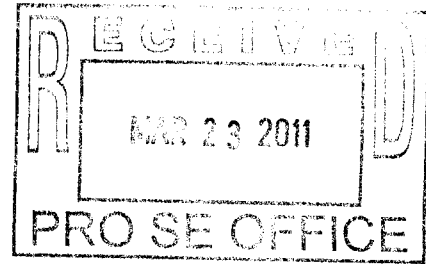
P.O. DAVID GRIECO, # 18061,

P.O. GREGG MINARD, # 4986,

Sgt. FISHER, # unknown,

Det. ONIEL, # unknown,

Defendants.



COMPLAINT

2010P1030017

Civil Action No.

COGAN, J.

PLAINTIFF'S COMPLAINT UNDER TITLE 42 U.S.C. § 1983

Plaintiff alleges, as follows:

INTRODUCTION STATEMENT

This is an action for damages sustained by a citizen of the United States against police officers of the County of Kings, State of New York, City Police Department, who unlawfully arrested the plaintiff without cause and threatening to lock him up for a long time. The action is also against the police commissioner as the supervisory officer responsible for the conduct of the defendants and for his failure to take corrective action with respect to police personnel whose vicious propensities were notorious to assure proper training and supervision of the personnel or to implement meaningful procedures to discourage lawless official conduct, and against

the County of Kings as the employer of the police personnel, which is sued as a person under 42 U.S.C. § 1983.

All defendants, herein are employed by the City of New York's Police Department and designated by Commissioner RAYMOND KELLY, and are under the color of law. Therefore, each defendant is being sued in his individual capacity and official capacity.

JURISTITION

This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 and First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

This Court has jurisdiction over this action under 28 U.S.C. §§ 1331 and 1343(a)(3) and (4). The matters in controversy arise under 42 U.S.C. § 1983.

Venue properly lies in this District pursuant to 28 U.S.C. § 1391(b)(2), because the events giving rise to this Cause of action occurred within the City of Brooklyn, State of New York, County of Kings, which is located within the Eastern District of this State.

PARTIES

Plaintiff ANTHONY INMAN, is a resident of New York State, and at all times relevant to the allegations of this complaint

was a resident of Kings County and a citizen of the United States.

2) At all times relevant hereto, defendant David Grieco was a police officer employed by the New York City Police Department to perform duties in the Borough of Brooklyn and was assigned to the 75th Precinct. At all relevant times, he was acting in such capacity as the agent, servant, and employee of defendant ~~of defendant~~ County of Kings. He is sued individually and in his official capacities.

3) At all times relevant hereto defendant Gregg Minardi was a police officer employed by the New York City Police Department to perform duties in the Borough of Brooklyn and was assigned to the 75th Precinct. At all relevant times, he was acting in such capacity as the agent, servant, and employee of defendant County of Kings. He is sued individually and in his official capacities.

4) At all times relevant hereto, defendant Fisher was a police sergent employed by the New York City Police Department to perform duties in the Borough of Brooklyn and was assigned to the 75th Precinct. At all relevant times, he was acting in such capacity as the agent, servant, and employee of defendant County of Kings. He is sued individually and in his official capacities.

5) At all times relevant hereto, defendant Zephrn was a

police officer employed by the New York City Police Department to perform duties in the Borough of Brooklyn, and was assigned to 75th Precinct at all relevant times, he was acting in such capacity as the agent, servant, and employee of defendant County of Kings. He is sued individually and in his official capacity.

6) At all times relevant hereto, defendant Henderson was a police officer employed for the New York City Police Department to perform duties in the Borough of Brooklyn and was assigned to the 75th Precinct at all relevant times, he was acting in such capacity as the agent, servant, and employee of defendant County of Kings. He is sued individually and in his official capacities.

7) At all times relevant hereto defendant ~~Raymond~~ Kelly was the duly appointed Commissioner of the New York City Police Department. As such he was the command officer of defendants David Grieco, Gregg Minardi, Sgt. Fisher, Sgt. Zeporn, Det. Oniel, and cap. Henderson, and was responsible for their training, supervision, and conduct. He was also responsible by law for enforcing the regulations of the New York City Police Department and for ensuring that the New York City Police Department personnel obey the laws of the State of New York and the United States. At all relevant times, he was acting in such capacity as the agent, servant, and employee of the defendant County of Kings, and the City of New York. He is sued in his individual and official capacities.

5

FIRST CAUSE OF ACTION

1) On November 24, 2009, defendants Grieco, Minardi, Fisher, Zepbrn, and Oniel, as police officers acted in concert, each aiding the other.

2) On November 24, 2009, defendants in uniform, under color of law arrived at 2810 Pittkin Avenue in Brooklyn, New York, together with several unknown officers with intent to gain entry, by any means and through intimidation, trickery, bribery and forcefully, all in an unprofessional and unlawful manner.

3) That on November 24, 2009, at approximately 12:25 pm while the plaintiff was lawfully sleeping in family/friends residence located at 2810 Pittkin Avenue, the defendants Grieco, Minardi, Fisher, and several other officers illegally, unlawfully, wilfully, wrongfully, maliciously, and intentionally pounded and banged on the front door of the residence awakening the plaintiff, the plaintiff's son, Keyair, Kenny & ~~Cathy~~ ^{Latoya} demanded entrance, and violently forced into the residence, all the while pointing guns at everyone, even plaintiff's son.

SECOND CAUSE OF ACTION

4) On November 24, 2009, the defendants without probable cause, falsely, unlawfully and wrongfully, with force and without plaintiff's consent and against his will arrested, interrogated,

without miranda, and imprisoned plaintiff for a weapon allegedly found at the apartment among other individuals too.

12) Plaintiff has been deprived of his liberty since the day of his unlawful seizure.

13) By reason of the above, plaintiff's reputation has been greatly injured and he has been brought into public scandal, disrepute, and disgrace, and has been greatly hindered and prevented from following and transacting his affairs and business and has suffered great emotional trauma and harm, all to his damage.

THIRD CAUSE OF ACTION

14) That upon information and belief, at all the times herein mentioned, the aforementioned defendants were employed as police officers of the City of New York, State of New York, and borough of Brooklyn, and were acting in that capacity.

15) That subsequent to their entry, the aforementioned defendants willfully and maliciously pointed guns at the plaintiff and at the plaintiff's son, a minor child, and violently seized the plaintiff against his will and without any cause putting the plaintiff in mortal fear.

16) That as a result of the trespass, false arrest and

imprisonment, Plaintiff Anthony Inman, being a citizen of the United States was subjected to deprivations of his rights, privileges and immunities secured by the constitution of the United States and the laws of the United States, sustained deprivations of his personal liberty, invasions of his privacy, and violations of his civil rights, has suffered and will continue to suffer from psychological harm, mental distress, humiliation, embarrassment, fear, and defamation of his character and reputation, was prevented from attending to his usual duties.

FOURTH CAUSE OF ACTION

17) This plaintiff repeats, reiterates, realleges as part of this cause of action each and every allegation contained in paragraph 1 through 16 inclusive of this complaint with the same force and effect as if fully set forth herein.

18) That as a result of the trespass, false arrest and imprisonment, plaintiff Anthony Inman being a citizen of the United States, was subject to deprivations of his rights privileges and immunities secured by the constitution of the United States and laws of the United States sustained deprivations of his privacy and violated of his civil rights, has suffered and will continue to suffer.

FIFTH CAUSE OF ACTION

19) When plaintiff arrived at the 75th Precinct, defendants informed the desk sergeant that plaintiff was being charged with Criminal Possession of a Weapon and the ECT was going to speak with the other people in the house, the officers put on a act that resulted in a sorce information and lies.

20) Defendant police officers, acting as agents and on behalf of defendant City of New York within the scope of their employment, wrongfully, maliciously and unlawfully placed plaintiff under arrest transported him to the precinct where he was confined until he was interrogated by several officers.

21) Defendants David, and Oniel both, told plaintiff that if he didn't provide them or any other officer with the names of people who possess guns and or drugs, or has counterfit money (rightthen) or any other pertinent information ~~information~~ in reference to murders, etc., plaintiff would be seated, charged and framed unlawfully as the gun owner.

22) Plaintiff had no information which could lead to arrests and as requested by law enforcement officers and the defendants.

SIXTH CAUSE OF ACTION

23) On November 30, 2009, in Brooklyn, State of New York, the

defendants initiated criminal prosecution of plaintiff by filing seeking and obtaining a criminal complaint by convincing an assistant district attorney to Charles J. Hynes, that plaintiff violated Penal Law Sections 265.02 & 265.01 this caused the plaintiff to be held, and arraigned before a justice of the criminal court in and for the County of Kings.

24) The failure of the mayor of the City of New York and the police department to adequately train, supervise, discipline or in any other way control the behavior of the defendants in the exercise of their police functions, and their failure to enforce the law of the State of New York and the regulations of the New York City Police Department is evidence of the reckless lack of cautious regard for the rights of the public including plaintiff and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of police commissioner and mayor.

25) The failure of the mayor of the City of New York and the police commissioner to train, supervise, discipline or in any other way control defendants in the exercise of their police function and their failure to enforce the laws of the State of New York.

SEVENTH CAUSE OF ACTION

26) At all times mentioned herein defendant Charles J. Hynes

was the duly elected and presently acting district attorney of the county of kings, Brooklyn, New York, and was the duly assigned specifically appointed and presently acting assistant district attorney of kings County, Brooklyn, New York and both were acting under of the statute and ordinaces of the State of New York.

27) During all times mentioned herein, the defendants and each of them, seperately and in concert, acted under color of law, to wit, under color of the statutes of New York. Each of the defendants here, seperately and in concert, engaged in the illegal conduct here mentioned to ther injury of plaintiff, Anthony Inman and deprived plaintiff Anthony Inman of the rights of the United States and the laws of the United States.

EIGHT CAUSE OF ACTION

28) On November 25, 2009, plaintiff Anthony Inman was committed to O.B.C.C. where he has been incarcerated ever since.

29) Plaintiff Anthony Inman, believes, and on such belief alleged that his arrest was approved by defendant Fisher.

30) Plaintiff Anthony Inman, believes, and on such belief alleged, that his arrest was approved by defendant Charles J. Hynes, or in the alternative, that his arrest was ratified by defendant Charles J. Hynes, as part of defendant's investigation of crime.

34) Plaintiff Anthony Inman believes, on such belief alleges, that his arrest was approved by defendant Charles J. Hynes and ADA should have took an active role in the investigating of his last big case were defendant Charles J. Hynes if he would have investigated he would not have to do 15 years and only if Hynes was to investigate, plaintiff would not be incarcerated now.

NINTH CAUSE OF ACTION

34) As part of their lack of investigation defendants Hynes and assistants caused plaintiff Anthony Inman to be arrested, incarcerated, and interrogated without probable cause..

34) The defendants individually and collectively knew at the time of Plaintiff Anthony Inman's arrest, and at all times since then, of the existence of evidence proving plaintiff's innocence of the crimes with which he has been charged.

34) The defendants individually and collectively knew at the time of Plaintiff Anthony Inman's arrest, and at all times since then that physical evidence they had collected physical evidence they had collected in connection with the charges brought against plaintiff Anthony Inman, was inconsistent with his guilt.

34) Each of the defendants seperately and in concert outside the scope of their jurisdiction and without authorization of

law and each of the defendants, separately and in concert, acted wilfully, knowingly and purposefully with the specific intent to deprive plaintiff, Anthony Inman of his right to freedom from illegal seizure of his person, freedom from unlawful arrest without evidence in support thereof, and freedom from illegal detention and imprisonment. All of these rights are secured to plaintiff by the provisions of the due process clause of the fifth and fourteenth amendments to the Constitution of the United States and by 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION

36) In arresting, incarcerating and interrogating plaintiff, Anthony Inman, the defendants knew or should have known they were violating those constitutional rights set forth in the above paragraph herein.

37) As a direct and proximate result of the aforesaid acts of the defendants, and each of them, plaintiff Anthony Inman suffered great mental anguish, from then until now, and he will continue to so suffer in the future; and he has lost and will in the future lose great sums of money by reason of his incarceration and having been greatly humiliated and held up to public scorn and derision as a result of the foregoing acts of the defendants. *He also lose his Apartment and time with Son*

38) The wrongful acts of the defendants complained of herein

were undertaken maliciously and include, without limitation, the following:

A. Intentionally causing the arrest of the plaintiff when the defendants knew or should known there were no grounds nor probable cause for his arrest;

B. The failure of the defendants to interview witnesses who substantiated the plaintiff's account of his activities;

C. The failure of the defendants to take into account facts which they knew cleared the plaintiff;

D. The intent of the defendants from the begining of their investigation to charge the plaintiff with a crime;

E. The procurement of groundless charges against the plaintiff based upon incomplete, unsupported evdience which the defendants knew or should have known was false, distorted or fabricated.

ELEVENTH CAUSE OF ACTION

39) Plaintiff was given an excessive bail, and unreasonable bail due to the defendants allegations and actions. A clear violation of plaintiff's rights.

40) Defendants deceitfully, maliciously and willfully mislead an assistant district attorney into drawing up and submitting a sworn complaint to the judge, accusing plaintiff of violating several penal laws by false statements, fabrication of evidence, etc., and such misconduct caused plaintiff to be

held and maliciously prosecuted.

40) Defendants initiated plaintiff's prosecution without probable cause and without an honest, reasonable, and good faith believe plaintiff to be guilty of the crime charged, which includes the perjured statements, and falsification of evidence, etc.. Defendants knowingly and willfully transmitted falsified theories of the November 24, 2009 events which lead to arrest.

TWELFTH CAUSE OF ACTION

41) Defendants caused plaintiff to be imprisoned upon false allegations on Riker's Island for as of today's date, over 8 & 12 months against plaintiff's will and without his consent until release or other disposition, all inviolation of his consitutional rights.

42) By reason of the above, plaintiff was greatly injured in his reputation and was exposed to public scandal and disgrace, suffered great mental anguish, was prevented from assisting his son and family, and business for some time, and was deprived of his liberty and constitutional rights, all to his damages.

43) Plaintiff also believes that during the course of litigate, plaintiff will loose his place of residence, become homeless, and jobless, all due to the acts and omissions by by the defendants.

46) Defendants actions are deliberate and not within the scope of law. Plaintiff therefore also seeks injunctive relief awarding appropriate disciplinary action upon each defendant, if possible.

EXHAUSTED ADMINISTRATIVE REMIDIES

Plaintiff forward to the Kings County District Attorney's Office a Notice to Quash.

Plaintiff's Notice to Quash as described above was sent via certified mail.

A Notice of Claim against the City of New York was filed.

On or about November 24, 2009, in Brooklyn, New York, defendants falsely, unlawfully, without probable cause, and wrongfully, with force and without plaintiff's consent and against his will, arrested and imprisoned plaintiff by and under false pretense.

WHEREFORE, Plaintiff seeks damages and injunctive relief, awarding disciplinary action and 10,000,000, together with costs and disbursements of this action, as well as for such other and further relief as this court may deem just and poper.

Respectfully Submitted,

ANTHONY INMAN,

VERIFICATION

I declare under penalty of perjury that the foregoing
is true and correct upon information and belief.

Signed this 4th day Feb, 2010



Anthony Inman
BC # 141-09-18995
Otis Bantum Correctional
Center
1600 Hazen Street
East Elmhurst, New York
11370